



THE POLICE COMMISSIONER
CITY OF NEW YORK

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

Re: Disciplinary Case No. 2024-31125 / PODS Case No. C-030814 regarding Deputy Inspector Maggie Clamp, Tax No. 940990

Date: January 29, 2026

This disciplinary matter was investigated by the Civilian Complaint Review Board ("CCRB") which involved allegations that Deputy Inspector Clamp unlawfully entered and searched a location and issued unlawful summonses to individuals. CCRB has determined that a downward deviation from the Disciplinary System Penalty Guidelines is warranted.

I concur with the downward deviation for the reasons articulated by CCRB in the attached deviation correspondence dated October 17, 2025, *only* as it pertains to the issuance of unlawful summons (6 counts). With respect to the allegations regarding the unlawful entry and search, I determined that Deputy Inspector Clamp will receive no disciplinary action for the reasons conveyed in the letter to CCRB dated January 14, 2026 (also attached).

Therefore, a penalty consisting of the issuance of a Schedule "B" Command Discipline with the forfeiture of seven (7) vacation days for the issuance of unlawful summons, as negotiated by CCRB, will be imposed in this matter.


Jessica S. Tisch
Police Commissioner



POLICE DEPARTMENT

January 14, 2026

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

Re: CCRB Case No. 202301867 (Incident Date: March 4, 2023) involving Deputy Inspector Maggie Clamp, Tax No. 940990 (DADS Case No. 2024-31125 / PODS Case No. C-030814)

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Deputy Inspector Maggie Clamp and determined that no disciplinary action is warranted regarding the allegations that she unlawfully entered and searched a location.

In this matter, Deputy Inspector Clamp stated that she responded to this location when she observed double-parked vehicles and heard loud music coming from two adjacent locations. Deputy Inspector Clamp stated she observed individuals exiting the storefront with red solo cups in their hands, indicative to her that there may have been alcohol in the cups. Deputy Inspector Clamp believed, based on her observations, that the location was open to the public because people were coming in and out, the lights were on, music was playing, and security was present. Based on the available body-worn camera footage, and the testimony of Deputy Inspector Clamp, it has been determined that the actions of the members of the service entering and walking around the establishment were proper to address a condition within her command, and therefore, discipline would not be in the interests of justice.

Thus, the Police Commissioner intends to dismiss the charges and specifications in this matter and to impose no disciplinary action for the entry and search. However, the Police Commissioner agrees with the negotiated penalty between CCRB and Deputy Inspector Clamp for the issuance of a Schedule "B" Command Discipline with the forfeiture of seven (7) vacation days solely for the six (6) counts of unlawful issuance of summons.

Sincerely,


For Michael P. Baker
Assistant Chief
Commanding Officer
Police Commissioner's Office

cc: Luis C. La Pietra, Esq.



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
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MOHAMMAD KHALID
INTERIM CHAIR

October 17, 2025

The Honorable Jessica Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, New York 10038

Re: CCRB v. Deputy Inspector Maggie Clamp, Tax No. 940990
CCRB Disciplinary Case No.: 202301867 (DADS No. 2024-31125)

Commissioner Tisch:

A negotiated settlement of a dismissal of the charge along with a Command Discipline Schedule (B) and the forfeiture of seven (7) vacation days was agreed upon and signed by all parties on October 7, 2025. Assistant Deputy Commissioner Paul M. Gamble endorsed the negotiated settlement on October 16, 2025.

On March 4, 2023, at approximately 10:10 p.m., numerous officers from the 71st Precinct arrived at 606 New York Avenue in Brooklyn. DI (formerly Capt.) Maggie Clamp instructed officers to enter and search "Dead Garden," Mr. [REDACTED]'s storefront at that location, despite Mr. [REDACTED]'s assertion that the business was closed and a private event was taking place inside and the door to the premises was locked to the public. DI Clamp instructed officers to issue multiple unlawful summonses for open containers of alcohol to any individual found inside the location, including to Mr. [REDACTED], [REDACTED], [REDACTED], [REDACTED], [REDACTED], and additional unidentified individuals

For the charge of unlawful entry/search (2 counts), the mitigated penalty is training, the presumptive penalty is the forfeiture of ten (10) vacation days, and the aggravated penalty is the forfeiture of twenty (20) vacation days. For the charge of issuance of unlawful summons (6 counts), the mitigated penalty is the forfeiture of ten (10) vacation days, the presumptive penalty is the forfeiture of twenty (20) vacation days, and the aggravated penalty is the forfeiture of termination.

We recommend a Command Discipline Schedule "B" with a forfeiture of seven (7) days for all charges, to run concurrent. The negotiated settlement deviates from NYPD disciplinary guidelines as to the charge of issuance of unlawful summons. We believe that this downward departure is appropriate given DI Clamp's over 19 years of service and her lack of any prior NYPD disciplinary history, her 15 awarded departmental recognition/medals, her current

evaluation of 5 out of 5 (SEH dated 11/15/24) and performance rating of 10 out of 10 (CORD dated 10/8/25). Given these factors the CCRB deems it appropriate to deviate from the Matrix and recommends the dismissal of the charge along with a Command Discipline Schedule (B) and the forfeiture of seven (7) vacation days.

Respectfully submitted,

Andre D. Applewhite

Andre Applewhite
Chief Prosecutor | Administrative Prosecution Unit
New York City Civilian Complaint Review Board